

Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendants bring this motion on the basis the complaint alleges the date of plaintiff's personal injury was September 27, 2023 and the filing date stamps on the summons and complaint are October 17, 2025. (See Chase Decl. Exh. 1.) Therefore, the time for filing the action has expired, pursuant to California Code of Civil Procedure § 335.1 (establishing a two-year deadline for filing personal injury actions.) (Mot. J. Pleadings at 4.) Plaintiff concedes the complaint is untimely, due to excusable neglect. (See Pl. Opp'n at 6.) Plaintiff also argues for equitable tolling. See *id.* at 3-5.)

The Court of Appeal has addressed the equitable tolling argument with regard to counsel's argued excusable neglect. "Plaintiffs have cited no cases, and we have found none, holding that delay due to attorney neglect qualifies as 'reasonable and good faith conduct on the part of the plaintiff' within the meaning of the equitable tolling doctrine. *Addison v. State of California* (1978) 21 Cal.3d 313, 319. Indeed, the opposite is true. (*Ibid.*; *Cf. Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 928-29 (attorney neglect is not a basis upon which to set aside a judgment of dismissal for failure to comply with statute of limitations); *Todd v. County of Los Angeles* (1977) 74 Cal.App.3d 661, 666 (counsel's negligence does not excuse the untimely filing of a lawsuit). (*Bonifield v. County of Nevada* (2001) 94 Cal.App.4th 298, 306 (overruled, in part, on other grounds).)

Defendant's motion for judgment on the pleadings is granted. The motion is granted without leave to amend because plaintiff is unable to cure his untimely complaint as the statute of limitations has passed.

18. S-CV-0056771 Hammick, James Hunter v. Vernon, Jeffrey Jace

Specially Appearing Defendants' Motion to Quash Service of Summons for Lack of Personal Jurisdiction

Request for Judicial Notice

Plaintiff and defendants' request for judicial notice is granted.

Ruling on Motion

Specially appearing defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon and Ann Vernon move to quash service of summons based on lack of personal jurisdiction pursuant to Code of Civil Procedure section 418.10. Plaintiff opposes the motion. Previously, the court granted plaintiff leave to engage in limited discovery on the issue of personal jurisdiction and permitted supplemental briefing.

Motion to Quash

A defendant may move to quash service of summons based on a lack of personal jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) When a defendant challenges the court's personal jurisdiction over it, the burden shifts to plaintiff to establish "by a preponderance of the evidence that minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction. (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1312-13.) Plaintiffs meet their burden to establish minimum contacts exist to impose personal jurisdiction by providing "specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate and cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts." (*Swenberg v. Dmarcian, Inc.* (2021) 68 Cal.App.5th 280, 291.) If plaintiffs meet their burden, the burden shifts back to defendants to "demonstrate that the exercise of jurisdiction would be unreasonable." (*Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362.)

Minimum Contacts

Plaintiff argues minimum contacts based on (1) defendants solicited plaintiff, a California resident, while he was located in California; (2) plaintiff wired investment funds from California banks; (3) defendants transmitted investment updates, reports, and other communications into California; and (4) plaintiff suffered economic injury in California as a direct result of defendants' forum-directed conduct. (Pl. Supp Opp'n at 3.) Plaintiff states defendants' own records confirm three separate subscription agreements were executed by plaintiff from California over the course of several months. The first agreement reflects that defendant Vernon executed from Zapopan, Mexico, while subsequent agreements reflect defendant Vernon executing from Utah and Arizona. (Pl. Supp Opp'n at 3, Exh. Z.) Plaintiff states the execution of three separate agreements over several months establishes that defendants created continuing obligations with a California resident. Plaintiff argues this constitutes purposeful availment because defendants knowingly entered into and maintained an ongoing business relationship directed toward California. (Pl. Supp Opp'n at 4 citing *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462 and *Hall v. LaRonde* (1997) 56 Cal.App.4th 1342, 1347-48.) Plaintiff further argues operational activities, investor communications, administrative operations, and business activities relating to the investment program were conducted primarily from Utah. (Pl. Supp. Exh. O). The fund had no physical office or employees in Wyoming. (*Id.*)

Specific jurisdiction

California's long-arm statute extends only "on any basis not inconsistent with the constitution of this state or of the United States." Code of Civil Procedure section 410.10. Generally, three requirements must be satisfied for California court to exercise specific jurisdiction over nonresident defendant: (1) defendant must purposefully avail themselves of forum benefits; (2) controversy must be related to or arise out of defendant's forum

contacts; and (3) assertion of personal jurisdiction must comport with fair play and substantial justice. Cal. Civ. Proc. Code § 410.10. *ParaFi Digital Opportunities LP v. Egorov* (2025) 108 Cal.App.5th 124. The Supreme Court has observed that “the plaintiff cannot be the only link between the defendant and the forum,” and that “the defendant’s suit-related conduct must create a substantial connection with the forum state.” *Walden v. Fiore* (2014) 571 U.S. 277, 285. In context of requirement for exercise of specific jurisdiction over nonresident defendant that defendant purposefully avail itself of forum state, unilateral activity of plaintiff cannot support exercise of jurisdiction, even when intentional torts are involved. Cal. Civ. Proc. Code § 410.10. *ParaFi Digital Opportunities LP, supra*, 108 Cal.App.5th 124.

Analysis

Defendants’ alleged contacts with California do not demonstrate purposeful availment of California. In *ParaFi Digital Opportunities LP, supra*, 108 Cal.App.5th 124, the Court of Appeals observed, “[o]ther than accepting plaintiffs’ request to invest in Curve, there is no indication that Egorov opened the “little round” of fundraising to California residents generally or otherwise solicited California investors. Egorov never visited California to market Curve, to seek out investors, or even to meet with plaintiffs during negotiations.” (*Ibid.* at 136. *C.f. West Corp. v. Superior Court* (2004) 116 Cal.App.4th 1167, 1176 (concluding telemarketers who upsell a product to residents of a forum state have purposefully availed themselves of the privileges of conducting activities within the forum state.))

Plaintiff argues defendants created an ongoing relationship. (Pl. Supp Opp’n at 4.) However, the Court of Appeals has found “merely receiving payment from California investors is not sufficient to demonstrate purposeful availment.” (See, e.g., *Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1321. And any alleged misuse of the investment funds occurred in Switzerland, where Egorov and Swiss Stake were located.” *ParaFi Digital Opportunities LP, supra*, 108 Cal.App.5th at 137.

Plaintiff argues under *Calder v. Jones* (1984) 465 U.S. 783, jurisdiction exists where a defendant commits an intentional act expressly aimed at the forum that causes foreseeable harm there. But the Supreme Court has found “mere injury to a forum resident is not a sufficient connection to the forum.” (*Walden, supra*, 571 U.S. at 290.) And “[s]imply directing conduct at a plaintiff knowing that she has significant California connections does not satisfy the minimum contacts inquiry.” (*David L. v. Superior Court* (2018) 29 Cal.App.5th 359, 374.

Plaintiff argues the court should not enforce the forum selection clause. (Pl. Supp Opp’n at 11-12.) However, the relevant fact is the agreement contains a forum selection clause outside of California. “Under the contracts test, courts look to “prior negotiations and contemplated future consequences, along with the terms of the contract and the parties’ actual course of dealing” to evaluate purposeful availment. (*Burger King Corp., supra*, 471 U.S. at 479.) Therefore, both the “terms of the contract” and “contemplated future consequences” reinforce the finding that [the defendant] could not reasonably foresee

litigation in [California.] (*Id.* at 479, 482; *ParaFi Digital Opportunities LP*, *supra*, 108 Cal.App.5th at 140.)

Plaintiff argues defendants directed communications to California. (See Pl. Supp Opp’n.) However, the ordinary “use of the mails, telephone, or other international communications simply do not qualify as purposeful activity invoking the benefits and protection of the [forum] state.” (*Peterson v. Kennedy* (9th Cir. 1985) 771 F.2d 1244, 1262.

Similarly, in this case, there is no evidence that defendants directly solicited California investors. Receiving payments from California is insufficient to show minimum contacts. The alleged torts committed by defendants occurred outside California. The terms of the agreement contemplated any possible future litigation outside of California. Communications are insufficient to show minimum contacts. Finally, plaintiff’s injury does not tie the defendants to the forum state. Therefore, plaintiff does not meet his burden to establish defendants have minimum contacts with California to impose personal jurisdiction over defendants.

Conclusion

Accordingly, defendants’ motion to quash is granted. The summons issued to defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon, and Ann Vernon on December 29, 2025, is quashed. Defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon, and Ann Vernon are dismissed from the action without prejudice.

Defendant Talease Perkins’ Demurrer to Plaintiff’s Complaint

Defendant Talease Perkins demurs to plaintiff’s complaint. Plaintiff opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages. Every element must be specifically pleaded. *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. To state a claim for negligent misrepresentation, plaintiff must allege the following elements:

misrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, with intent to induce another's reliance on the fact misrepresented; ignorance of the truth; justifiable reliance on the misrepresentation by the plaintiff; and resulting damage. (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983.) Negligent misrepresentation must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.)

The demurrer is sustained with leave to amend as to the first and third causes of action. Plaintiff fails to allege each element of these claims as to defendant Talease Perkins with requisite specificity.

The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. *City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212, as modified (Aug. 24, 2011).

The demurrer is sustained with leave to amend as to the fifth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

The elements of an unjust enrichment claim are the receipt of a benefit and the unjust retention of the benefit at the expense of another. *Peterson v. Celco Partnership* (2008) 164 Cal.App.4th 1583, 1593.

The demurrer is sustained with leave to amend as to the sixth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

To state a civil violation of California's statute prohibiting receipt of stolen property, a plaintiff must plead three elements: (a) the property was stolen, and (b) the defendant was in possession of it, (c) knowing it was stolen. *Hueso v. Select Portfolio Servicing, Inc.*, S.D. Cal. (2021) 527 F.Supp.3d 1210.

The demurrer is sustained with leave to amend as to the eighth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

Corporations code section 25401 makes it unlawful to offer or sell a security in California by means of a communication that includes a false statement of material fact, or omits a material fact necessary to make the statement communicated not misleading. Section 25501 provides that any person violating section 25401 is liable to the purchaser, and "[u]pon rescission, a purchaser may recover the consideration paid for the security, plus interest at the legal rate, less the amount of any income received on the security, upon tender of the security." Corp. Code, § 25401. *Boam v. Trident Financial Corp.* (1992) 6 Cal.App.4th 738, 742.

The demurrer is sustained with leave to amend as to the ninth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

Any amended complaint shall be filed and served on or before **July 10, 2026**.

Defendants' Motion to Strike Portions of Plaintiff's Complaint

Defendants' motion to strike portions of plaintiff's complaint is denied as moot in light of the court granting plaintiff leave to amend his complaint.

19. S-CV-0056877 In re the Petition of Furiosi, Marcella

Amended Petition for Compromise of the Claim of Minor

Petitioner Marcella Furiosi petitions for approval of compromise of the claim of minor Beau Podesta. The court issued a notice of intended ruling on May 18, 2026, indicating the petition does not conform to the requirements of the Probate Code and setting this hearing. Since then, no amended petition has been filed for the court's review.

Petitioner requests relief that does not conform to the requirements of the Probate Code. Petitioner requests that the balance of the settlement funds, after payment of fees, medical expenses, and costs, be deposited in a blocked account at MVB Bank in Fairmont, West Virginia. Pursuant to Probate Code section 3611(b), deposits in a blocked account are to be with "a financial institution *in this state . . .*" (Emphasis added.) The proposed bank is not within California.

Because the petition seeks relief not in conformity with the application provisions of the Probate Code it is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is waived.

20. S-CV-0057053 CrossCountry Mortgage v. Pankow, Michael

The petition to confirm arbitration award is dropped from calendar in light of the notice of stay of proceedings filed on April 6, 2026. The petition may be re-noticed after the stay has been lifted.

The court on its own motion schedules this matter for an order to show cause hearing regarding status of bankruptcy stay on **September 29, 2026 at 9:00 a.m. in Department 32**.
